

25PSCP00333 25PSCP00333

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-07-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CG%2C07%2F30%2F2026

Source SHA-256: 2dd82d1e884bef2dd49ad2e302ea90691c8353ef074701925c41f3e6b4693560

Case Number: 25PSCP00333 Hearing Date: July 30, 2026 Dept: G

Petitioner Blue Hill Specialty Insurance

Co.'s Motion for Protective Order

Respondent:

Respondent Karla Garduno Hernandez

Respondent

Karla Garduno Hernandez's Motion to Compel Further Deposition of Petitioner

Blue Hill Specialty Insurance Co.'s Authorized Agent

Respondent:

Petitioner Blue Hill Specialty Insurance Co.

TENTATIVE

RULING

Respondent

Karla Garduno Hernandez's Motion to Compel Further Deposition of Petitioner

Blue Hill Specialty Insurance Co.'s Authorized Agent is deemed MOOT.

Petitioner

Blue Hill Specialty Insurance Co.'s Motion for Protective Order is deemed MOOT.

BACKGROUND

This

is a petition from an insurance dispute.

On October 1, 2022, respondent Karla Garduno Hernandez (Garduno) allegedly

rode in a motor vehicle as the passenger of nonparty Lionel Chavez (Chavez), driving on behalf of rideshare company nonparty Uber Technologies, Inc. (Uber). During the trip, the motor vehicle of nonparty Ricardo Ramos (Ramos) allegedly collided with that of Chavez, injuring Garduno. At the time of the collision, petitioner Blue Hill Specialty Insurance Co. Inc. (Blue Hill) and nonparty Progressive Insurance Co. (Progressive) allegedly had insurance policies afforded to cover Garduno's injuries from the collision. However, Blue Hill and Progressive allegedly failed to provide Garduno with the full benefits under the insurance contract(s).

On June 16, 2025, Blue Hill filed the Petition for Assignment of File Number (case no. 25PSCP00333) in this uninsured motorist action.

On August 12, 2025, Garduno filed a Complaint in a bad faith action (case no. 25PSCV02929).

On February 13, 2026, Blue Hill filed the motion for protective order. On March 26, 2026, Garduno filed the opposition, and on April 6, 2026, Blue Hill filed the reply.

On February 26, 2026, the court held an informal discovery conference and permitted Garduno to file a motion to compel further deposition, but the court did not receive the motion. On March 30, 2026, Blue Hill filed the opposition, and on April 6, 2026, Garduno filed the reply.

On April 29, 2026, the parties agreed to arbitrate the uninsured motorist claims.

On June 30, 2026, the court continued the hearing on the motion to compel further deposition and the motion for protective order pending the resolution of Blue Hill's default in the bad faith action.

This case is set for a case management conference (further) and a continued hearing on the motions on July 30, 2026. (There

is also a hearing on motions for reconsideration in the bad faith action set for hearing on the same date.)

ANALYSIS

Garduno's motion seeks a further deposition of Blue Hill's claims adjuster, and Blue Hill's motion seeks to prevent the further deposition. The parties agreed to arbitrate the uninsured motorist claim, and the court will stay proceedings and discovery as it relates to the bad faith claims. Since the motion for further deposition and the motion for protective order deal with the bad faith claims, they are subject to the court's stay.

Therefore, the court deems MOOT the motion to compel further deposition and the motion for protective order. After completion of arbitration on the uninsured motorist claim, and assuming the issues raised by the pending motions remain relevant, Garduno and Blue Hill may request that the court set their pending motions for hearing.

CONCLUSION

For these reasons, the motion to compel further deposition is deemed MOOT, and the motion for protective order is deemed MOOT.

Garduno and Blue Hill may request that the court set their pending motions for hearing once arbitration is completed on uninsured motorist claim.